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JUN 28 2018

Honorable Rand S. Rubin
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Lyons Jr., Michael Darnell
CDC No.: V65828
Case No.: BA265115
Date of Sentence: January 1, 2005

Dear Honorable Rand S. Rubin:

The purpose of this letter is to provide the court with authority to resentence Michael Darnell Lyons Jr. pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lyons Jr. was sentenced in 2005, and was convicted of section 245, subdivision (A)(2), Assault With Firearm. The trial court sentenced inmate Lyons Jr. on January 1, 2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lyons Jr.'s section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lyons Jr.'s sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

